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23-CIV-00494
LINE 2

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC.,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO SPECIAL INTERROGATORIES, SET THREE, AND TO IMPOSE
MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Special Interrogatories, Set Three,
and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to interrogatories within thirty days of service. (Code of Civ. Proc.,
§ 2030.260, subd. (a).) A party who fails to serve a timely response to an interrogatory waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2030.290, subds. (a)–(b).)

Plaintiff Northern California Collection Service, Inc. (“NCCS”) served Defendant Ampex Engineering
and Construction, Inc. (“Ampex”) with a third set of special interrogatories on October 14, 2025. (Dec.
16, 2025 Compendium of Exhibits, p. 119.) As of December 16, 2025, no responses to the set of
interrogatories had been served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses
and impose monetary sanctions for the failure to respond.

Due to a mistaken assumption that NCCS had tacitly agreed to stay discovery while the parties mediated
the case, Ampex’s counsel did not calendar the deadline to respond—resulting in Ampex’s failure to
serve timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving
notice of the motion, Ampex served verified responses without objections to each interrogatory in the set
on January 9, 2026. (*Id.*, at ¶ 19; Aug. 25, 2026 Compendium of Exhibits, pp. 36–53.)

Despite having received the responses and failing to raise any issue with the responses’ substance, NCCS
nonetheless persists in seeking an order compelling Ampex’s responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §

2030.290, subd. (c); see also *id.*, at § 2023.030 subd. (a).) NCCS has unsuccessfully moved for an order compelling response, but the motion was prompted by Ampex's misuse of discovery by failing to serve timely responses. (See *id.*, at § 2023.010, subd. (d).) Accordingly, both parties' requests for mandatory and discretionary monetary sanctions are denied.

NCCS's attorney of record is advised he has sworn an oath to conduct himself with courtesy at all times. (Cal. Rules of Court, rules 9.7(a)–(b).) Such courtesy includes an attempt to resolve simple and obvious disputes informally before resorting to motion practice and wasting judicial resources. (See State Bar of California Attorney Guidelines of Civility and Professionalism, § 10.) A simple phone call or email here could have prevented all the time and expense the parties, their attorneys, and the Court have now incurred. The fact that the Civil Discovery Act does not require a motion to compel initial responses to be accompanied by a meet and confer declaration does not alter this conclusion; courtesy in many circumstances requires more than compliance with statutory law. If there is further refusal to abide by the normative guidelines of the State Bar and other sources of valuable advice on how an attorney should strive to conduct himself or herself, the Court is inclined to enforce such compliance.

NCCS and its counsel are also reminded they are statutorily obligated to accept electronic service. (See Code Civ. Proc., § 1010.6, subd. (b)(2).) NCCS admits that it is indeed NCCS's software that is causing the rejection of Ampex's attempts at electronic service. (Sep. 2, 2026 Memorandum of Points & Authorities, p. 2, ll. 8–9.) If NCCS is unwilling to take steps to permit electronic service as required from Ampex's electronic service address of record, the Court is inclined to relieve Ampex of the obligation to serve papers electronically and ensure any additional cost or inconvenience therefrom is borne by NCCS.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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LINE 3

NORTHERN CALIFORNIA COLLECTION SERVICE, INC. VS. AMPEX ENGINEERING &
CONSTRUCTION INC,

NORTHERN CALIFORNIA COLLECTION SERVICE, INC.
AMPEX ENGINEERING & CONSTRUCTION INC,

ANDRE J. LELIEVRE
LAWRENCE A. JACOBSON

PLAINTIFF: NORTHERN CALIFORNIA COLLECTION SERVICE, INC.'S MOTION FOR AN ORDER COMPELLING
DEFENDANT TO SERVE INITIAL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET FOUR), AND TO
IMPOSE MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Northern California Collection Service, Inc.'s Motion for an Order Compelling Defendant
Ampex Engineering & Construction, Inc. to Serve Initial Responses to Requests for Production (Set
Four) and to Impose Monetary Sanctions is DENIED.

Defendant Ampex Engineering & Construction, Inc.'s Request for Judicial Notice is GRANTED but not
to the truth of any matter asserted therein.

A party is required to serve responses to requests for production within thirty days of service. (Code of
Civ. Proc., § 2031.260, subd. (a).) A party who fails to serve a timely response to a request waives any
objection, and the propounding party is then entitled to move for an order compelling a response. (*Id.*, at
§ 2031.300, subds. (a)–(b).)

NCCS served Ampex with a fourth set of requests for production on October 30, 2025. (Dec. 16, 2025
Compendium of Exhibits, p. 119 [all citations to filed papers are to those filed in support of or in
opposition of the present motion].) As of December 16, 2025, no responses to the set of requests had been
served. (*Id.*, at p. 5, ¶ 7.) NCCS thus filed the instant motion to compel responses and impose monetary
sanctions for the failure to respond.

Due to a mistaken assumption that NCCS tacitly agreed to stay discovery while the parties mediated the
case, Ampex's counsel did not calendar the deadline to respond—resulting in Ampex's failure to serve
timely responses. (Aug. 25, 2026 Declaration of Lawrence A. Jacobson, ¶¶ 5–9.) After receiving notice of
the motion, Ampex served verified responses without objections to each request in the set on December
17, 2025. (*Id.*, at ¶ 18; Aug. 25, 2026 Compendium of Exhibits, pp. 21–53.)

Despite having received the responses and failing to raise any issue with the responses' substance, NCCS
nonetheless persists in seeking an order compelling Ampex's responses. (See Sep. 2, 2026 Memorandum
of Points & Authorities, p. 1, ll. 22–24.) While NCCS is correct that a trial court has *authority* to order
further responses when untimely responses are served while a motion to compel is pending (see *Sinaiko
Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408), such an
order would be entirely moot here. Accordingly, the request for an order compelling responses is denied.

Furthermore, while the imposition of sanctions against “any party, person, or attorney who
unsuccessfully makes or opposes a motion to compel a response to interrogatories” is otherwise
mandatory, the present “circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §
